



Appeal Decision

Site visit made on 12 August 2026

by Ann Veevers BA(Hons) PGDip(BCon) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 7 September 2026

Appeal Ref: 6009068

Rose Cottage, 38 Higher Lane, Kerridge SK10 5AR

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission
 - The appeal is made by Wayne and Debbie Maxwell against Cheshire East Council.
 - The application Ref is 26/0088/HOUS.
 - The development proposed is described as 'demolition of part of the existing single storey flat roof garage, and the erection of a single storey rear first floor extension to create living accommodation on top of the existing flat roof of the garage'.
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Decision

1. The appeal is dismissed.

Applications for costs

2. An application for a full award of costs was made by Wayne and Debbie Maxwell against Cheshire East Council. That application is the subject of a separate decision.

Preliminary Matters

3. The appeal follows the Council's failure to determine the application within the prescribed period. However, the Council has indicated in its statement, that, had it been in a position to determine the application, it would have refused planning permission. The substance of the Council's statement has informed the main issues of the appeal.
4. A new National Planning Policy Framework (the Framework) was published on 17 August 2026. The policy tests relevant to this appeal have not fundamentally changed and I have therefore not referred back to the parties for comment. I am satisfied that no party has been prejudiced by this approach. Accordingly, I have had regard to the current version of the Framework in reaching my decision.
5. As the site is located within a conservation area, I have had special regard to section 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act).

Main Issues

6. The main issues are:
 - whether the proposal would be inappropriate development in the Green Belt, having regard to the Framework and any relevant development plan policies;

- the effect of the proposal on the openness and purposes of the Green Belt;
- whether the proposal would preserve or enhance the character or appearance of the Kerridge Conservation Area; and,
- whether any harm by reason of inappropriateness and any other harm would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether inappropriate development

7. Policy GB7 of the Framework sets out categories of development that are not inappropriate in the Green Belt. This includes the extension of an existing building, provided that it is of permanent and substantial construction, is lawful in planning terms, and that any extension will not result in a disproportionate increase in size compared to the original building.
8. Policy RUR 11 of the Cheshire East Local Plan Site Allocations and Development Policies Document, adopted December 2022 (SADPD) and Policy PG3 of the Cheshire East Local Plan Strategy 2010-2030, adopted July 2017 (CELPS) are broadly consistent with the Framework in this regard. They both include reference to an extension to a building that does not result in disproportionate additions over and above the size of the original building.
9. The Framework does not define what constitutes a disproportionate addition, but Policy RUR 11 sets out that factors such as height, bulk, form, siting and design will be taken into account and that, subject to exceptions that do not apply in this case, proposals would usually be considered to represent disproportionate additions where they increase the size of the original building by more than 30%. The policy goes on to state that in assessing proposals, full account will be taken of any previous extensions or development to the original building or in its curtilage, and the original building means the building as originally built, or as existed on 1 July 1948 if constructed before this date. This accords with the definition provided at footnote 40 of the Framework.
10. The appellants have not provided a numerical assessment of the proposal in relation to the size of the 'original' building and any later additions. The Council assert in its Statement and in the absence of detailed second floor plans, that the net increase in floorspace of the building from its original form would be in the region of approximately 57%, although elsewhere in the Council's evidence it is stated the increase would be more like 112%. I also note the figure of 57% provided in the table at paragraph 8.9 of the Council's Statement is incorrect and it should in fact be more like 80%, well above the guide figure of 30% provided in Policy RUR 11. Regardless of the exact percentage increase, I note the appellants do not dispute that the building has been previously extended by a two-storey front/side addition¹ and an attached double garage constructed in the 1970's.
11. To my mind, the use of a numerical measure alone would be an over prescriptive approach to matters of proportionality. Accordingly, a conclusion on this matter cannot be arrived at purely on a mathematical calculation as a single factor as the

¹ Cheshire East reference: 03/2709P for 'ground floor front extension to link existing outbuilding, construction of two storey link between dwelling and outbuilding and increase in height of front wall', dated 20 November 2003.

test is primarily an objective one based on size, as referenced by the Framework. This is ultimately a matter for the decision maker, with much depending on the individual circumstances of the case, as the examples of recently allowed appeals provided by the appellants demonstrate².

12. In my view, the proposed first floor extension would represent a considerable-sized addition to the built form and massing of the building. Even though it would be set back from the front elevation, it would introduce appreciable bulk above the existing garage on the rear (west) elevation, resulting in a spread of the building at first-floor level.
13. The appellants' case is predicated on the proposed extension being of modest size and that it does not harm the openness of the Green Belt. However, the relevant category of development in this case as set out in Policy GB7.1(b) of the Framework, makes no mention of Green Belt openness or the five purposes listed in Policy GB2. They are therefore not relevant when undertaking an exercise of proportionality. The judgment referred to by the appellants³ was concerned with the meaning of openness and therefore does not assist in deciding whether the proposal is disproportionate or not. Openness is considered separately below.
14. I acknowledge that the garage over-hang would be removed and there would be no increase in the footprint of the building. However, in my view, the proposal would, by virtue of the extent of the new built form, and when considered alongside previous additions, disproportionately change the size of the original building. This leads me to find that the proposal would result in a disproportionate addition to the original building and thus fails to meet the exception within policy GB7.1(b) of the Framework. Accordingly, the proposal would be inappropriate development in the Green Belt.

Openness

15. Chapter 13 of the Framework identifies that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The government attaches great importance to Green Belts, the essential feature of which are their openness and their permanence. Openness is, in effect, the absence of development and it has both a spatial and visual aspect to it.
16. The proposal would result in some reduction in openness, in the area above the single storey flat roofed garage, since it would add built form where there is currently none. It would be visible along Higher Lane and although the proposal would not be the same height as the principal building, it would extend the full width of the garage, preventing views through to the sloping garden and hillside beyond. The proposal would be clearly noticeable as an addition to the side of the building, seen from Higher Lane and glimpsed from Windmill Lane, particularly during the months when leaves would not be on the trees.
17. I find that there would be an impact on visual openness rather than spatial openness, as there would be no physical encroachment by reason of there being no increase in footprint. Whilst the appellants refer to matters relating to the site being within an established residential frontage within a defined domestic area

² Appellants' Final Comments: Appeal refs: APP/R0660/W/25/3361020; APP/R0660/D/25/3373729; and APP/R0660/D/24/3358013

³ R (on the application of Samuel Smith Old Brewery (Tadcaster) and others) (Respondents) v North Yorkshire County Council (Appellant) [2020] UKSC 3

along a ribbon of development and not an isolated building in open countryside, these factors do not mean that there is no impact on openness.

18. For these reasons I conclude that there would be harm to Green Belt openness, but on consideration of the scale of the development taken by itself the harm would be limited. There would be no conflict with the Green Belt purposes set out in Policy GB2 of the Framework. Nonetheless, the proposal would be contrary to the specific guidance within the Framework pertaining to Green Belt openness.

Character and appearance

19. Kerridge Conservation Area (the CA) covers a broad rural area on the edge of the settlement of Bollington. Much of the CA includes a steeply sloping and wooded west-facing hillside with narrow lanes bound by stone walls that follow the contours of the hillside. Along the lanes, buildings are predominantly residential and generally comprise of two-storey stone cottages interspersed with woodland areas and fields. I find the CA's prevailing character and appearance, and thus its special interest and significance, to be largely derived from the surviving vernacular buildings, comprising of farmsteads and cottages set within pastoral and wooded countryside that recalls an earlier Estate and mining landscape. Rose Cottage sits against a backdrop of a steep landscaped garden and wooded incline at the eastern end of Higher Lane, a cobbled lane with no through vehicular access.
20. Rose Cottage is identified in the appellants' Design, Planning and Heritage Statement⁴ as a building of some local architectural and historic significance. Given its age, dominant three-storey height, classical proportions, use of local stone and architecturally restrained but highly pleasing appearance, I agree. The traditional yet rather grand status of Rose Cottage when compared to the neighbouring terrace, adds to the aesthetic charm of this part of the CA, positively contributing to its character and appearance as a whole, and thereby to its significance as a designated heritage asset. Despite the rather incongruous addition of the double garage, given its low height and use of stone, it has not diminished the ability to appreciate the historic form of Rose Cottage or the traditional character and appearance of Higher Lane.
21. The removal of the front overhang of the existing garage to create a set-back from the principal side (south) elevation of Rose Cottage would allow the older part of Rose Cottage to be revealed at its corner fronting Higher Lane. This, along with the re-building of the front part of the garage in high-quality local stone and replacing the existing single wide garage door with two doors would better align with the overall proportions and materials of the cottage and would be a heritage benefit of the scheme.
22. However, it does not follow that by enhancing the appearance of the existing garage and adding a first floor would have the same relationship with the principal building or a similar effect on the character or appearance of the CA. Currently, the subservient roof form of the garage means that it is relatively visually unobtrusive in views along Higher Lane, which allows the upper parts of the west elevation of the principal building to be seen and appreciated. The sturdy vernacular stone construction of this elevation, which includes two small timber vertically aligned casement windows, two tall king-crown chimney stacks and a stone slab roof

⁴ Hamer Way Architects, Design, Planning and Heritage Statement, January 2026.

denote the simple but robust architecture of Rose Cottage and that typically found elsewhere in the CA.

23. Although it would be considerably set back from the south elevation and would be below second-floor window cill height, the proposal would partially obscure the building's west elevation, eroding an important element of its unpretentious and simple form. Moreover, when viewed from Higher Lane, the additional built form would impart undue prominence to what, historically, has been a secondary elevation.
24. The existing two storey extension to the front (east) side of the building is set back significantly from the south elevation when seen from Higher Lane. That would not be the case in relation to the proposal. Given its set-back and overall width in comparison to the narrow width of the south elevation, it would not successfully balance the principal building.
25. Furthermore, while I acknowledge the design intentions of the recessed glazed link in lessening the prominence of the proposal and providing a clear link between the old and the new, the differences in the form, detailing and materials of the proposal when compared to previous additions to the property, would be clearly perceptible. These include frameless glazing, standing seam lead cladding, a metal balustrade, a large apex glazed feature and a different ridge height. For the most part, the overall form and mix of materials results in an overly complex design. Consequently, even with the use of carefully chosen materials and the relatively contemporary design approach, the proposal would be a visually distracting addition.
26. I recognise that the scheme has been revised to address concerns raised by the Council during their consideration of the application and the garage may well have been constructed with the potential for a first floor above. I also acknowledge that much of the existing west elevation of the building and the first floor oriel window on the south elevation would remain clearly visible from Higher Lane. However, I am not convinced that the proposal imparts the restrained, well-proportioned addition that complements the existing composition of the building as advanced by the appellants. Instead, I find that it would have an awkward and overly prominent relationship with the principal building. Despite the mature landscape backdrop, the proposal would not, integrate quietly into the streetscape. Due to its height, width and design across a large part of the west elevation, the proposal would visually detract from the pleasing form and legibility of the existing building, as well as the harmonious and unified appearance of buildings along Higher Lane.
27. As suggested by the appellants, I have considered whether conditions controlling the external materials of the proposal could adequately mitigate these issues and concerns in the event I was to allow the appeal. However, having regard to the extent of potential external changes, it would not be appropriate nor acceptable to leave such a key consideration to conditions, particularly since the building is located in the CA, where any changes could markedly alter the appearance of the proposal. In any event, it would not overcome the fundamental harm wrought by the size and form of the proposal.
28. Drawing the above together, given the positive contribution that the building and Higher Lane makes to the key characteristics of the CA and that the proposal would be publicly visible, I find the proposal would detract from the character and

appearance of the CA. Whilst the harm would be localised and limited given the nature and location of the proposal, such negative impacts can cumulatively erode the overall quality of CA as a whole. For these reasons, the proposal would not preserve or enhance the character or appearance of the CA. Thus, it would have a negative effect on the significance of the CA, contrary to section 72(1) of the Act.

29. Policy HE4.2 of the Framework sets out that any harm to, or loss of, the significance of a designated heritage asset (including from development within its setting) should have a clear and convincing justification. Policy HE6.1 of the Framework states that when considering the potential effect of a development proposal on the significance of a designated heritage asset, substantial weight should be given to the asset's conservation, irrespective of whether any potential effect amounts to a positive effect, harm, substantial harm, or total loss of its significance.
30. Mindful of advice in Planning Practice Guidance (PPG) which directs that the extent of harm within each category of harm should be clearly articulated, and given the nature and extent of the works, I deduce the harmful effects in this case would be towards the lower end of harm. Nevertheless, any harm is a matter of considerable importance and weight. As such, Policy HE6.4 goes on to say that the effect on the asset and its significance should be weighed against any public benefits resulting from the proposal.
31. Taking this into account, along with what is stated to constitute a public benefit within the PPG⁵, it is reasonable to conclude that the proposal would generate economic benefits in the construction phase and social benefits in an improvement to the local housing stock. These outcomes would facilitate the delivery of objectives of the planning system to create additional floorspace using airspace and making effective use of land as outlined in the Framework. However, while the functionality and flexibility of the building may be improved, no compelling evidence has been presented that there is an identified need for a family dwelling of the proposed size or whether such objectives could not be achieved in a less harmful way. Given this, and due to its relatively small scale in this context, I attribute limited positive weight to these factors as benefits of the proposal to the public at large.
32. The front of the existing garage would be altered and as I indicate above, that in itself would be a heritage benefit. However, the proposal as a whole is harmful. As such, this factor carries little weight as a benefit of the proposal in its totality. In all of the above respects, clear and convincing justification has not been provided for the identified harm to the significance of the designated heritage asset.
33. On balance, in accordance with Policy HE6.3 of the Framework, in giving considerable importance and weight to the harm to the significance of the designated heritage assets, I find that this would not be outweighed by the limited public benefits that would be generated by the proposal. As such, in relation to this main issue, the proposal would conflict with Policies SE1 and SE7 of the CELPS and GEN 1, HOU 11 and HER 3 of the SADPD. Together, amongst other things, these policies seek that development makes a positive contribution to its surroundings by protecting and enhancing the quality and distinctiveness of an area by reflecting local character; and that harm to a conservation area is avoided.

⁵ Planning Practice Guidance Paragraph: 020 Reference ID: 18a-020-20190723.

Other considerations

34. There would be economic benefits arising from the construction activities associated with the proposal and social benefits in an improvement to the local housing stock which, as I have set out above, would attract limited weight in its favour.
35. In support of the appeal, the appellants have drawn my attention to a potential fallback position. This relates to a previous planning permission granted by the Council in 2011 for a similar proposal⁶. Given this permission is no longer extant, it cannot constitute a realistic fallback position.
36. Furthermore, whilst the principle of consistency in decision making is an important one, each decision turns on the facts and circumstances of that particular case at the time of the application. In this regard, although the relevant statutory duties of the Act have not changed, I am mindful that, since the 2011 permission, there have been material changes to the decision making context at both a local and national level. Namely, the publication of the Framework in 2012 (latest revision in 2026), and the adoption of the CELPS in 2017 and the SADPD in 2022. Consequently, the details of the 2011 permission and the context of its determination is not directly comparable, and it carries very little weight in favour of the proposal.
37. I note support for the proposal from a neighbouring resident. However, this is a neutral matter rather than one that carries positive weight in its favour. That there would be no harm to the living conditions of the occupiers of adjacent dwellings nor harm to highway safety are also considerations of neutral weight.
38. I acknowledge that the appellants amended the proposal during the planning application process and that they sought pre-application advice, but these too are not matters which weigh in favour of permitting the appeal proposal.

Other Matters

39. Evidence indicates the appeal site is located close to the Grade II listed Clayton's Tower (the Tower), known as 'Chimney to Air Shaft at SJ9377 7663'⁷, which is located on the appellants' land to the north-east of Rose Cottage. Mindful of the statutory duty set out in s66(1) of the Act, I have had regard to the desirability of preserving the setting of this listed building.
40. From the information before me, including the list entry, I find the special interest and significance of the Tower largely stems from its historic, architectural and archaeological interests. Pertinent in these respects are its surviving material and traditional construction; its symbolism of meaning as a focal point to the local community as part of the local scene and its historical associations with William Clayton and former mining activities in the area. The public routes and verdant spaces, both public and private, that surround this designated heritage asset, provide the space to experience the Tower and appreciate its special interest. On the whole, this setting contributes positively to the listed buildings' significance as a designated heritage asset.

⁶ Application Ref: 11/3024M for the demolition of part of garage; construction of living accommodation on existing flat roof of garage, granted 7 October 2011.

⁷ National Heritage List for England, List Entry Number: 1312786, first listed 9 December 1983.

41. Given its orientation in relation to the proposal and the distance between the Tower and Rose Cottage, I find the proposal would not diminish the ability to appreciate its significance and would preserve its setting. In this respect, the proposal would meet the requirements of section 66(1) of the Act. I also note that the Council did not consider any effects in these regards sufficiently harmful to justify a putative reason for refusal on this basis.
42. The Council allege in its Statement that Rose Cottage is in proximity to the Grade II listed Heesom Green Farmhouse. However, this listed building is located in the Parish of Toft, some 15 miles from the appeal site. The proposal would have no effect on its setting.
43. Concerns regarding how the planning application was dealt with by the Council, including matters relating to communication, are not matters for my consideration as part of this appeal as I have only had regard to the planning merits of the proposal that is before me.

Planning Balance and Conclusion

44. Policy GB6.2 of the Framework states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Such circumstances will not exist unless the potential harm to the Green Belt by reason of inappropriateness and any other harm resulting from the proposed development, is clearly outweighed by other considerations. In making this assessment, substantial weight should be given to the harm to the Green Belt which would be caused, including harm to its openness.
45. The proposal would be inappropriate development in the Green Belt and would result in harm to its openness, albeit limited. The proposal would also result in harm to the character and appearance of the CA which would not be outweighed by public benefits.
46. The other considerations I have identified are of limited weight in favour of the proposal. They do not individually or cumulatively cross the high threshold of clearly outweighing the harm to the Green Belt and to openness or the 'other' harm to the character and appearance of the CA. Consequently, the very special circumstances necessary to justify the development do not exist and the proposal conflicts with Policy PG3 of the CELPS and Policy RUR 11 of the SADPD which both aim to protect the Green Belt from inappropriate development and with the policies of the Framework where they seek to protect the Green Belt.
47. Bringing all the above together, for the reasons I have given, the proposal would conflict with the development plan as a whole and there are no material considerations, including the approach of the Framework, worthy of sufficient weight that would indicate a decision other than in accordance with it.
48. Therefore, the appeal is dismissed.

Ann Veevers

INSPECTOR